



*Embassy of the United States of America
Abu Dhabi, United Arab Emirates*

April 29, 2026

To: Prospective Bidders

Subject: Request for Quotation No. PR15871514

Enclosed is a Request for Quotation (RFQ) for the supply and delivery of new, factory-sealed Apple iPhone units to the U.S. Embassy Abu Dhabi in support of the Office of Defense Partnership (ODP). If you would like to submit a quotation, follow the instructions in Section 3 of the solicitation, complete the required portions of the attached document, and submit it to the address shown on the Standard Form 1449 that follows this letter.

The U.S. Government intends to award a Purchase Order to the responsible bidder whose quotation, conforming to the solicitation, is determined to be the Lowest Price Technically Acceptable (LPTA), in accordance with simplified acquisition procedures under FAR Part 13. Award will be made to the bidder offering the lowest evaluated price among those quotations that meet all minimum technical acceptability requirements specified in Section 4.

Prospective bidders must meet basic standards for responsibility at FAR 9.104 and full compliance with the solicitation to be eligible for award. The Government intends to award based on initial quotations, without holding discussions, although the Government reserves the right to hold discussions with bidders if there is a need to do so.

Quotations are due no later than **May 29, 2026, at 10:00 AM (UAE time)**. No quotations will be accepted after this time. Quotations must be in English; incomplete quotations will not be accepted.

Your quotation must be submitted electronically to AbuDhabiContracts@state.gov, copying BactadMA@state.gov. The subject line must read "**Quotation Enclosed – RFQ No. PR15871514**". Only PDF attachments are accepted; each email attachment must not exceed 10 MB. If multiple files are required, please send them in separate emails.

For a quotation to be considered, you must also complete and submit the following:

1. SF-1449
2. Section 1, Pricing
3. Section 5, Representations and Certifications
4. Additional information as required in Section 3
5. Proof of SAM Registration
6. Cybersecurity Supply Chain Risk Management (C-SCRM) Questionnaire and/or State Department Secure Software Development Attestation Form

Notwithstanding FAR 4.203-1(b)(5)(ii), the Contracting Officer has determined that it is in the best interest of the U.S. Government that qualified bidders interested in submitting a quotation are registered and have an active account in the SAM (System for Award Management) database at <https://www.sam.gov> at the time of submitting a quotation.

If you have any questions, please send them to AbuDhabiContracts@state.gov, copying BactadMA@state.gov by **May 08, 2026, at 17:00 (UAE time)**.

Sincerely,

//signed//

Gregory Stoneberg
Contracting Officer

Enclosures:

- SF-1449
- RFQ – Continuation Pages
- Attachment 1: Cybersecurity Supply Chain Risk Management (C-SCRM) Questionnaire

TABLE OF CONTENTS

SECTION 1 - THE SCHEDULE

- SF 1449 Cover Sheet
- Continuation to SF-1449, RFQ Number PR15871514, Prices, Block 23
- Continuation to SF-1449, RFQ Number PR15871514, Schedule of Supplies/Services, Block 20 – Description/Specifications/Work Statement
- Attachment 1: Cybersecurity Supply Chain Risk Management (C-SCRM) Questionnaire and/or State Department Secure Software Development Attestation Form

SECTION 2 - CONTRACT CLAUSES

- Contract Clauses
- Addendum to Contract Clauses – FAR and DOSAR Clauses not Prescribed in Part 12

SECTION 3 - SOLICITATION PROVISIONS

- Solicitation Provisions
- Addendum to Solicitation Provisions – FAR and DOSAR Provisions not Prescribed in Part 12

SECTION 4 - EVALUATION

- Evaluation
- Addendum to Evaluation – FAR and DOSAR Provisions not Prescribed in Part 12

SECTION 5 - REPRESENTATIONS AND CERTIFICATIONS

- Representations and Certifications
- Addendum to Bidders Representations and Certifications – FAR and DOSAR Provisions not Prescribed in Part 12

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS <i>OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30</i>				1. REQUISITION NUMBER PR15871514		PAGE 3 OF 27	
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NUMBER		5. SOLICITATION NUMBER PR15871514	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Gregory Stoneberg				b. TELEPHONE NUMBER (No collect calls) 02-414-2269	
						8. OFFER DUE DATE/ LOCAL TIME May 29, 2026, 10:00 AM (UAE time)	
9. ISSUED BY Contracting Office U.S. Embassy Abu Dhabi Abu Dhabi, United Arab Emirates		CODE 19TC10		10. THIS ACQUISITION IS ☐ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☒ UNRESTRICTED OR ☐ WOMEN-OWNED SMALL BUSINESS ☐ (WOSB) ELLIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM NAICS: ☐ EDWOSB ☐ 8 (A) SIZE STANDARD:			
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		☐ 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700) 13b. RATING 14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP			
15. DELIVER TO Contracting Office U.S. Embassy Abu Dhabi Abu Dhabi, United Arab Emirates		CODE 19TC10		16. ADMINISTERED BY Contracting Office U.S. Embassy Abu Dhabi Abu Dhabi, United Arab Emirates			
17a. CONTRACTOR/ OFFERER TELEPHONE NO.		CODE FACILITY CODE		18a. PAYMENT WILL BE MADE BY Financial Management Center U.S. Embassy Abu Dhabi Abu Dhabi, United Arab Emirates			
				CODE			
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM			
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See continuation page of SF1449 (Use Reverse and/or Attach Additional Sheets as Necessary)						
25. ACCOUNTING AND APPROPRIATION DATA						26. TOTAL AWARD AMOUNT (For Govt. Use Only)	
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA						☒ ARE ☐ ARE NOT ATTACHED	
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA						☐ ARE ☐ ARE NOT ATTACHED	
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN A SOFT COPY TO ISSUING OFFICE AT ABUDHABICONTRACTS@STATE.GOV . CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED HEREIN.				☐ 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____ YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:			
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (Type or print)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print) Gregory Stoneberg		31c. DATE SIGNED	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
01	Apple iPhone 17 Pro Max, 256GB, Silver – new, factory-sealed, in original Apple packaging; sourced exclusively from Apple Authorized Resellers	2	EA		
02	Apple iPhone 17 (Base), 256GB, Black – new, factory-sealed, in original Apple packaging; sourced exclusively from Apple Authorized Resellers	27	EA		
03	Shipping and Handling to U.S. Embassy Abu Dhabi	1	LOT		

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER ☐ PARTIAL ☐ FINAL	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐	
37. CHECK NUMBER				
38. S/R ACCOUNT NO.	39. S/R VOUCHER NO.	40. PAID BY		
41.a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY (<i>Print</i>)		
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		42b. RECEIVED AT (<i>Location</i>)		
		42c. DATE REC'D (YY/MM/DD)		42d. TOTAL CONTAINERS

STANDARD FORM 1449 (REV. 2/2012) BACK

SECTION 1 - THE SCHEDULE

CONTINUATION TO SF-1449 RFQ NUMBER PR15871514 PRICES, BLOCK 23

I. SCOPE OF CONTRACT

The U.S. Embassy Abu Dhabi has a requirement for the supply and delivery of new, factory-sealed Apple iPhones for the Office of Defense Partnership (ODP) under solicitation number PR15871514. This acquisition supports secure, reliable mobile communications for ODP personnel and ensures continued access to mission-critical applications in compliance with the Department of State's Go Mobile program.

The prices listed below shall include all labor, materials, shipping and handling, insurance (see FAR 52.228-4 and 52.228-5 where applicable), overhead, and profit. The Contractor shall deliver all items FOB Destination to the U.S. Embassy Abu Dhabi.

II. PERIOD OF PERFORMANCE

Delivery shall be completed within 14 calendar days after receipt of the Purchase Order. No option periods are contemplated under this RFQ.

III. PRICING TABLE

Bidders shall complete unit and total prices for each line item on the table below. Prices shall be quoted in Arab Emirate Dirham (AED) or USD (indicate which in the Total column).

CLIN	Description	Qty	Unit	Unit Price	Total Price
01	Apple iPhone 17 Pro Max, 256GB, Silver – new, factory-sealed, in original Apple packaging; sourced exclusively from Apple Authorized Resellers	2	EA		
02	Apple iPhone 17 (Base), 256GB, Black – new, factory-sealed, in original Apple packaging; sourced exclusively from Apple Authorized Resellers	27	EA		
03	Shipping and Handling to U.S. Embassy Abu Dhabi	1	LOT		
	Subtotal				
	Value Added Tax (VAT), if applicable				
	GRAND TOTAL (indicate AED or USD)				

IV. VALUE ADDED TAX (VAT)

Value Added Tax (VAT) is not included in the CLIN rates. Instead, it will be priced as a separate Line Item in the contract and on invoices. Local law dictates the portion of the contract price that is subject to VAT; this percentage is multiplied only against that portion. The Government will provide proof of direct VAT exemption per host country VAT laws, as applicable.

Note: Bids with advance payment terms will not be considered for evaluation.

**CONTINUATION TO SF-1449
RFQ NUMBER PR15871514
SCHEDULE OF SUPPLIES/SERVICES, BLOCK 20
DESCRIPTION / SPECIFICATIONS / WORK STATEMENT**

1. BACKGROUND AND PURPOSE

The U.S. Embassy Abu Dhabi has a requirement for the supply and delivery of Apple iPhones for the Office of Defense Partnership (ODP) under solicitation number PR15871514. This acquisition supports secure, reliable mobile communications for ODP personnel and ensures continued access to mission-critical applications in compliance with the Department of State's Go Mobile program.

These devices must run on the iOS operating system to integrate with existing Department of State infrastructure and security protocols, including enrollment in the Department's Apple Business Manager (ABM) instance for Microsoft Intune mobile device management (MDM) configuration. ABM enrollment into the Department's instance will be coordinated by the U.S. Government (U.S. Embassy Abu Dhabi Diplomatic Technology Office) after delivery and acceptance; the vendor is not authorized to enroll the devices in any ABM instance prior to delivery (see Section 4).

2. SCOPE

The vendor shall supply and deliver new, factory-sealed Apple iPhone units, in original manufacturer's packaging, to the U.S. Embassy Abu Dhabi. The units required under this contract are two (2) Apple iPhone 17 Pro Max, 256GB, Silver, and twenty-seven (27) Apple iPhone 17 (Base), 256GB, Black. Shipping and handling necessary to deliver the items to the U.S. Embassy Abu Dhabi are included within the scope of this contract. Specific quantities and unit pricing are set forth in Section 1, Block 23 (Prices).

3. TECHNICAL AND COMPLIANCE REQUIREMENTS

- a) All devices shall be brand new, unopened, and in original Apple manufacturer packaging.
- b) All devices shall be sourced exclusively from Apple or an Apple Authorized Reseller.
- c) All devices shall include the standard Apple manufacturer warranty (minimum one year from date of purchase).
- d) All devices shall comply with the Department of State's technical and security requirements under the Go Mobile program.
- e) All devices shall support iOS and be capable of enrollment in the U.S. Department of State's Apple Business Manager (ABM) instance for Microsoft Intune MDM configuration.

- f) Devices shall be readily available locally in the United Arab Emirates to meet the urgency of this requirement.
- g) Devices and any supporting accessories shall not include Huawei, ZTE, Hytera, Hikvision, or Dahua components, consistent with FAR 52.204-25.

4. APPLE BUSINESS MANAGER (ABM) REQUIREMENT

Devices delivered under this contract shall not be enrolled in any Apple Business Manager (ABM) instance — including the vendor's own ABM or any third-party ABM — prior to delivery. The U.S. Embassy Abu Dhabi Diplomatic Technology (DT) Office will perform ABM enrollment into the Department of State's ABM instance after receipt and acceptance.

If the vendor is sourcing directly from Apple or from an Apple Authorized Reseller that enrolls devices in ABM by default, the vendor shall notify Apple or the reseller prior to placing the order to ensure the devices are excluded from ABM enrollment. This requirement does not apply to carrier or retail sources (e.g., Etisalat) that do not enroll devices in ABM by default.

5. DELIVERY

- a) **Delivery Location:** U.S. Embassy Abu Dhabi, Embassies District Area, Plot 38, Sector W59-02, Sheikh Rashid Bin Saeed Street (Old Airport Road) at Rabdan 29th Street, Abu Dhabi, United Arab Emirates.
- b) **Delivery Timeframe:** Within 14 calendar days after receipt of the Purchase Order.
- c) **Packaging:** Items shall be delivered in original, unopened Apple packaging.
- d) **FOB:** Destination. All shipping, handling, and insurance costs shall be borne by the vendor and included in the quoted price.
- e) **Device Identifiers at Delivery:** The vendor shall provide, at the time of delivery, a digital list (Excel or PDF format) of all device serial numbers and IMEIs, organized by model and color. This list is required to support the Government's manual ABM enrollment process after acceptance.

6. INSPECTION AND ACCEPTANCE

All delivered units will be inspected upon receipt at the delivery location. Acceptance is contingent upon:

- a) Correct model, storage capacity, color, and quantity as specified in Section 2.
- b) Factory-sealed condition with no signs of tampering.
- c) Verification of authenticity through Apple's serial number lookup.
- d) Confirmation that devices are not enrolled in any ABM instance, per Section 4.
- e) Receipt of the digital serial number and IMEI list, per Section 5.

Any unit that fails inspection shall be returned to the vendor for replacement at no additional cost to the Government. Final acceptance will be documented by the Contracting Officer's Representative (COR) or designated receiving official.

7. WARRANTY AND POST-DELIVERY SUPPORT

All devices shall be covered by the standard Apple manufacturer's limited warranty (minimum one year

from date of purchase) against defects in materials and workmanship under normal use.

- a) **Warranty Period:** The warranty shall commence on the date of Government acceptance and shall remain valid for a minimum of twelve (12) months.
- b) **Defective Units – Dead on Arrival (DOA):** Any unit identified as defective or non-functional within thirty (30) calendar days of acceptance shall be replaced by the vendor with a new, factory-sealed unit of the same model, storage capacity, and color at no cost to the Government. Replacement shall be completed within seven (7) calendar days of the vendor's receipt of written notice from the COR.
- c) **In-Warranty Defects (after 30 days):** For defects identified after the initial 30-day period but within the 12-month warranty, the vendor shall facilitate warranty service through the appropriate Apple Authorized Service Provider channel. The vendor shall provide the Government with the authorized service center contact information, claim procedure, and turnaround times at the time of delivery.
- d) **Claim Process:** The COR or designee shall submit warranty claims in writing (email acceptable) to the vendor's designated point of contact. The vendor shall acknowledge receipt of the claim within two (2) business days and provide a disposition (repair, replacement, or referral to Apple) within five (5) business days.
- e) **Proof of Purchase:** The vendor shall provide, at the time of delivery, documentation sufficient to establish warranty entitlement (e.g., tax invoice, serial numbers, and Apple Authorized Reseller certification).
- f) **Exclusions:** Damage resulting from misuse, unauthorized modification, or accidental damage is not covered under the manufacturer's warranty and is the responsibility of the Government.

8. INVOICING AND PAYMENT

A. Payment:

Vendor shall submit soft copy invoice via email to USMissionUAEInvoices@state.gov soon after the delivery. Payment will be processed via Electronic Funds Transfer (EFT) directly to vendor's bank account after delivery and acceptance of the ordered items/services and receipt of soft copy invoice, on net 30 days terms.

Note: Bids with advance payment terms will not be considered for evaluation.

B. Invoice Content:

To support processing, each invoice shall reference Purchase Order number and RFQ PR15871514, and shall include itemized line items showing model, storage, color, serial numbers, quantity, unit price, and extended price; shipping and handling as a separate line item; and VAT shown as a separate line item where applicable.

C. Payment Queries:

For payment queries, email ADDIsbursingOffice@state.gov.

9. KEY PERSONNEL / POINT OF CONTACT

The Contractor shall assign a Point of Contact to this order who understands written and spoken English and is available to respond to Government inquiries during the delivery and warranty period.

ATTACHMENT 1

CYBERSECURITY SUPPLY CHAIN RISK MANAGEMENT (C-SCRM) QUESTIONNAIRE

Instructions:

- This worksheet shall be completed by the vendor responsible for submitting the quotation. References to “organization” refer to the offering entity. If the offering entity is a joint venture (JV), the response may come from either the JV or from the JV managing partner.
- Provide the requested inputs in the Vendor Response column for all Item Numbers in Parts 1-3. Bidders are advised that the Government may request documentation from bidders to validate the responses provided.
- In lieu of completing this questionnaire, the vendor may submit a third-party authorizing official assessment such as ISO 27001, ISO 9000, SOC II, or FedRAMP authorization.

PART 1 - CONTACT INFORMATION		
Item No.	Item Description	Vendor Response
1.1	Enter the name of your company.	
1.2	Enter the name of the primary Point-Of-Contact (POC) for your company that the Government may contact to discuss the vendor inputs on this questionnaire.	
1.3	Enter the job title of the primary POC.	
1.4	Enter the phone number of the primary POC.	
1.5	Enter the e-mail address of the primary POC.	

PART 2 - VENDOR RISK MANAGEMENT PLAN			
Item No.	Item Description	Vendor Response	NIST SP 800-53 Reference
2.1	Does your organization identify its key supply chain threats? (Note: if you do not have suppliers, answer “Yes”)		IR-8, SR-7
2.2	Does your organization map key suppliers to your supply chain threats? (Note: if you do not have suppliers, answer “Yes”)		IR-8, SR-7
2.3	Does your organization have written SCRM requirements in terms of contracts with your key suppliers? (Note: if you do not have suppliers, answer “Yes”)		SA-4
2.4	Does your organization verify that your suppliers meet		SR-6

	SCRM requirements through contractual terms and conditions? (Note: if you do not have suppliers, answer “Yes”)		
--	--	--	--

PART 3 - PHYSICAL AND PERSONNEL SECURITY			
Item No.	Item Description	Vendor Response	NIST SP 800-53 Reference
3.1	Does your organization have policies for conducting background checks of your employees as permitted by the country in which your organization operates?		PE-2, PE-3, PS-3
3.2	Does your organization have procedures in place to prevent tampering of Information and Communications Technology (ICT) equipment stored as supply chain inventory?		SR-9, AC-1
3.3	Do you provide literacy training on recognizing and reporting potential indicators of insider threat?		AT-2(2)

SECTION 2 - CONTRACT CLAUSES

52.212-4 CONTRACT TERMS AND CONDITIONS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023)

This clause is incorporated by reference (see SF-1449, Block 27a).

FAR 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JAN 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- (1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017).
- (2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023).
- (3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment (Nov 2021).
- (4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).
- (5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023).
- (6) 52.233-3, Protest After Award (Aug 1996).
- (7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

- ☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I (Nov 2021).
- ☐ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021).
- ☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020).
- ☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023).
- ☒ (11)(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition (Dec 2023).
- ☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (Jan 2025).
- ☒ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018).
- ☒ (32) 52.222-19, Child Labor—Cooperation with Authorities and Remedies (Jan 2025).
- ☒ (39)(i) 52.222-50, Combating Trafficking in Persons (Nov 2021).
- ☒ (48)(i) 52.225-1, Buy American—Supplies (Oct 2022).
- ☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024).
- ☒ (59) 52.232-33, Payment by Electronic Funds Transfer—System for Award Management (Oct 2018).
- ☒ (60) 52.232-34, Payment by Electronic Funds Transfer—Other than System for Award Management (Jul 2013).

☒ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996).

(c) The Contractor shall comply with applicable FAR clauses in paragraph (c) of the full text of 52.212-5. None are specifically checked for this commercial product acquisition.

(d) Comptroller General Examination of Record – Applicable as set forth in the full text of 52.212-5.

(e) Subcontract flow-down requirements apply as set forth in the full text of 52.212-5.
(End of clause)

52.229-12 TAX ON CERTAIN FOREIGN PROCUREMENTS (FEB 2021)

(a) Definitions. As used in this clause—

Foreign person means any person other than a United States person.

United States person, as defined in 26 U.S.C. 7701(a)(30), means:

- A citizen or resident of the United States;
- A domestic partnership;
- A domestic corporation;
- Any estate (other than a foreign estate within the meaning of 26 U.S.C. 7701(a)(31)); and
- Any trust if a court within the United States is able to exercise primary supervision over the administration of the trust and one or more United States persons have the authority to control all substantial decisions of the trust.

(b) This clause applies only to foreign persons. It implements 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) If the Contractor is a foreign person and has only a partial or no exemption to the withholding, the Contractor shall include the IRS Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, with each voucher or invoice submitted under this contract. The Government will withhold a full 2 percent of each payment unless the Contractor claims an exemption.

(d) Exemptions and procedures are described in 26 CFR 1.5000C-1(d)(5) through (7) and on IRS Form W-14 and its instructions.

(e) Taxes imposed under 26 U.S.C. 5000C may not be included in the contract price or reimbursed.
(End of clause)

ADDENDUM TO CONTRACT CLAUSES

FAR AND DOSAR CLAUSES NOT PRESCRIBED IN PART 12

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at Acquisition.gov; this address is subject to change.

CYBERSECURITY SUPPLY CHAIN RISK MANAGEMENT REQUIREMENTS (AUG 2024)

(a) Definitions.

Covered article – The term includes:

- “Information and Communications Technology” – an industry term for information technology that is involved in integrating telecommunications (e.g., telephone lines and wireless signals) and computers to enable users to access, store, manipulate, transmit, and receive digital information. This includes software, software as a service, digital and data services, and hardware components that support information creation, storage, transfer, and management, like computers and smartphones.
- “Telecommunications Equipment” – equipment, other than customer premises equipment, used by a carrier to provide telecommunications services, including software integral to such equipment (including upgrades).
- “Telecommunications Service” – the offering of telecommunications for a fee directly to the public, or to such classes of users as to be effectively available directly to the public, regardless of the facilities used.
- “Cybersecurity Supply Chain Risk” – the risk that a person may sabotage, maliciously introduce unwanted function, extract data, or otherwise manipulate the design, integrity, manufacturing, production, distribution, installation, operation, maintenance, disposition, or retirement of covered articles to surveil, deny, disrupt, or otherwise manipulate the function, use, or operation of the covered articles or information stored or transmitted on the covered articles.
- “Incident” – an occurrence that (A) actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or availability of information or an information system; or (B) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.
- “Vulnerability” – any weakness in an information system, system security procedures, internal controls, or implementation that could be exploited or triggered by a threat source.

(b) Contractor Cybersecurity Supply Chain Risk Management Responsibilities.

The Contractor must regularly identify, assess, monitor, and mitigate cybersecurity supply chain risks when providing covered articles or services to the Government. The Contractor shall maintain artifacts (i.e., any byproduct of hardware or software development that helps describe the architecture, design, and function of that hardware or software) that document its compliance with this paragraph and shall provide these artifacts to the Government within 48 hours of request, which may be redacted to remove sensitive proprietary information.

(c) Supporting Government Cybersecurity Supply Chain Risk Assessments.

No more than an estimated once per year, the Contractor must provide any requested information related to its supply chain within 10 business days except information that is protected by a non-disclosure agreement with its customers (e.g., another federal agency).

(d) Novation Agreement Notice.

FAR 42.1203 requires Government approval of novation agreements. For proposed novation agreements for this contract, the Contractor shall provide any information requested by the Government regarding the proposed successor's identity and information regarding its supply chain.

(e) Notification procedures for cybersecurity supply chain incidents.

When an incident occurs, the Contractor must contact the CO or their designee within 72 hours of the incident.

(f) Subcontracts.

The Contractor shall insert the substance of this clause in all subcontracts and other contractual instruments in support of this contract.

(g) Attestation following Major Version Change.

For software provided under the contract that required an approved Secure Software Development Attestation Form, the responses on this form apply to the software's major version changes (e.g., using a semantic versioning schema of Major.Minor.Patch, the software version number goes from 2.5 to 3.0) unless the Contractor otherwise notifies the Contracting Officer that the form is no longer valid. This notification must be submitted within 15 days of the major version change and must include a new completed and signed Secure Software Development Attestation Form.

(End of clause)

THE FOLLOWING FAR CLAUSES ARE INCORPORATED BY REFERENCE:

Clause	Title	Date
52.203-17	Contractor Employee Whistleblower Rights	NOV 2023
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	NOV 2021
52.204-27	Prohibition on a ByteDance Covered Application	JUN 2023
52.222-19	Child Labor—Cooperation with Authorities and Remedies	JAN 2025

Clause	Title	Date
52.225-14	Inconsistency Between English Version and Translation of Contract	FEB 2000
52.225-19	Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic Mission Outside the United States	MAY 2020
52.228-3	Workers' Compensation Insurance (Defense Base Act)	JUL 2014
52.228-4	Workers' Compensation and War-Hazard Insurance Overseas	APR 1984
52.228-5	Insurance—Work on a Government Installation	JAN 1997
52.229-6	Taxes—Foreign Fixed-Price Contracts	FEB 2013
52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
52.244-6	Subcontracts for Commercial Products and Commercial Services	JAN 2025

THE FOLLOWING DOSAR CLAUSES ARE PROVIDED IN FULL TEXT:

652.204-70 DEPARTMENT OF STATE PERSONAL IDENTIFICATION CARD ISSUANCE (FEB 2015)

(a) The Contractor shall comply with the Department of State (DOS) Personal Identification Card Policy and Procedures for all employees performing under this contract who require frequent and continuing access to DOS facilities or information systems. The Contractor shall insert the substance of this clause in all subcontracts when the subcontractor's employees will require frequent and continuing access to DOS facilities or information systems.

(b) The DOS Personal Identification Card Policy and Procedures may be accessed at <http://www.state.gov/m/ds/rls/rpt/c21664.htm>.

(End of clause)

CONTRACTOR IDENTIFICATION (JULY 2008)

Contract performance may require contractor personnel to attend meetings with government personnel and the public, work within government offices, and/or utilize government email. Contractor personnel must take the following actions to identify themselves as non-federal employees:

1. Use an email signature block that shows name, the office being supported, and company affiliation (e.g., "John Smith, Office of Defense Partnership, ACME Corporation Support Contractor");
2. Clearly identify themselves and their contractor affiliation in meetings;
3. Identify their contractor affiliation in Departmental e-mail and phone listings whenever contractor personnel are included in those listings; and
4. Contractor personnel may not utilize Department of State logos or indicia on business cards.

652.229-70 EXCISE TAX EXEMPTION STATEMENT FOR CONTRACTORS WITHIN THE

UNITED STATES (JUL 1988)

This is to certify that the item(s) covered by this contract is/are for export solely for the use of the U.S. Foreign Service Post identified in the contract schedule.

The Contractor shall use a photocopy of this contract as evidence of intent to export. Final proof of exportation may be obtained from the agent handling the shipment. Such proof shall be accepted in lieu of payment of excise tax.

652.232-70 PAYMENT SCHEDULE AND INVOICE SUBMISSION (FIXED-PRICE) (AUG 1999)

(a) General. The Government shall pay the Contractor as full compensation for all work required, performed, and accepted under this contract the firm fixed-price stated in this contract.

(b) Invoice Submission. The Contractor shall submit invoices electronically to USMissionUAEInvoices@state.gov. To constitute a proper invoice, the invoice shall include all the items required by FAR 32.905(e).

(c) Contractor Remittance Address. The Government will make payment to the Contractor's address stated on the cover page of this contract, unless a separate remittance address is provided.

652.237-72 OBSERVANCE OF LEGAL HOLIDAYS AND ADMINISTRATIVE LEAVE (FEB 2015)

(a) The Department of State observes the following days as holidays: New Year's Day, Martin Luther King's Birthday, Washington's Birthday, Memorial Day, Juneteenth, Independence Day, Labor Day, Columbus Day, Veterans Day, Thanksgiving Day, Christmas Day, and any other day designated by Federal law, Executive Order, or Presidential Proclamation, plus any applicable local holidays.

(b) When New Year's Day, Independence Day, Veterans Day, or Christmas Day falls on a Sunday, the following Monday is observed; if it falls on Saturday, the preceding Friday is observed. Observance of such days by Government personnel shall not be cause for additional period of performance or entitlement to compensation except as set forth in the contract.

652.242-70 CONTRACTING OFFICER'S REPRESENTATIVE (COR) (AUG 1999)

(a) The Contracting Officer may designate in writing one or more Government employees, by name or position title, to take action for the Contracting Officer under this contract. Each designee shall be identified as a Contracting Officer's Representative (COR). Such designation(s) shall specify the scope and limitations of the authority so delegated; provided, that the designee shall not change the terms or conditions of the contract, unless the COR is a warranted Contracting Officer and this authority is delegated in the designation.

(b) The COR for this contract is the Diplomatic Technology Officer (DTO), U.S. Embassy Abu Dhabi.

652.242-73 AUTHORIZATION AND PERFORMANCE (AUG 1999)

(a) The Contractor warrants the following:

1. That it has obtained authorization to operate and do business in the country or countries in which this contract will be performed;
2. That it has obtained all necessary licenses and permits required to perform this contract; and
3. That it shall comply fully with all laws, decrees, labor standards, and regulations of said country or countries during the performance of this contract.

(b) If the party actually performing the work will be a subcontractor or joint venture partner, then such subcontractor or joint venture partner agrees to the requirements of paragraph (a).

652.243-70 NOTICES (AUG 1999)

Any notice or request relating to this contract given by either party to the other shall be in writing. Said notice or request shall be mailed or delivered by hand to the other party at the address provided in the schedule of the contract. All modifications to the contract must be made in writing by the Contracting Officer.

SECTION 3 - SOLICITATION PROVISIONS

52.204-29 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS— REPRESENTATION AND DISCLOSURES (DEC 2023)

(a) Definitions. As used in this provision, “Covered article,” “FASCSA order,” “Intelligence community,” “National security system,” “Reasonable inquiry,” “Sensitive compartmented information,” “Sensitive compartmented information system,” and “Source” have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(b) Prohibition. Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order.

(c) Procedures. The Bidder shall search for the phrase “FASCSA order” in the System for Award Management (SAM) (<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source. FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) Representation. By submission of this quotation, the bidder represents that it has conducted a reasonable inquiry and that the bidder does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as disclosed.

(End of provision)

52.212-1 INSTRUCTIONS TO BIDDERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023)

This provision is incorporated by reference (see SF-1449, Block 27a).

ADDENDUM TO 52.212-1

A. SUMMARY OF INSTRUCTIONS. Each quotation must consist of the following:

A.1. Cybersecurity Supply Chain Risk Management (C-SCRM) Forms

The bidder shall include in its quotation Attachment 1, C-SCRM Questionnaire. In lieu of a completed C-SCRM Questionnaire, the vendor may submit a third-party authorizing official assessment, such as ISO 27001, ISO 9000, SOC II, or FedRAMP authorization.

If the bidder is providing any software, the bidder must complete the State Department Secure Software Development Attestation Form (or another agency's equivalent form) and either include it in the quotation, submit it to the CISA Repository for Software Attestations and Artifacts website and indicate in its quotation that the form is on this website, or upload the form to a public website and provide a link. Both documents must be completed in accordance with each attachment's instructions. Failure to follow the instructions may result in rejection of the quotation.

A.2. SF-1449

A completed solicitation, in which the SF-1449 cover page (Blocks 12, 17, 19–24, and 30 as appropriate), and Sections 1 and 5 have been filled out.

A.3. Information demonstrating the bidder's ability to perform, including:

1. Name of a Point of Contact who understands written and spoken English.
2. Evidence that the bidder operates an established business with a permanent address and telephone listing in the United Arab Emirates.
3. Proof of active SAM registration including the SAM Unique Entity Identifier (UEI) number and CAGE code.
4. List of clients over the past three (3) years, demonstrating prior experience with similar supplies (e.g., Apple-authorized device supply to government or large enterprise clients). Provide dates of contracts, places of performance, value of contracts, contact names, telephone numbers, and email addresses. Bidders are advised that the past performance information requested above may be discussed with the client's contact person. In addition, the client's contact person may be asked to comment on the bidder's:
 - 4.a. Quality of products supplied under the contract;
 - 4.b. Compliance with contract terms and conditions;
 - 4.c. Effectiveness of management;
 - 4.d. Willingness to cooperate with and assist the customer; and
 - 4.e. Business integrity and business conduct.
 - 4.f. Willingness to cooperate with and assist the customer; and
 - 4.g. Business integrity and business conduct.
5. Evidence that the bidder can provide the necessary personnel, equipment, and financial resources needed to perform the work.
6. A copy of the bidder's valid commercial license issued in the United Arab Emirates authorizing it to supply the requested items.
7. Documentary evidence that the bidder is an Apple Authorized Reseller or sources the requested devices exclusively from Apple Authorized Resellers (e.g., Apple authorization letter or reseller certificate).
8. Proposed delivery schedule (calendar days after receipt of Purchase Order).
9. Confirmation that devices will not be enrolled into, or require enrollment into, a U.S. Government Apple Business Manager (ABM) instance.

A.4. Submission Of Quotation

Your quotation must be submitted electronically via email to AbuDhabiContracts@state.gov, copying BactadMA@state.gov. The subject line must read "Quotation Enclosed – RFQ No. PR15871514."

Quotations must be received by **May 29, 2026, at 10:00 AM (UAE time)**. Submissions received after this deadline will not be accepted. Only PDF attachments are accepted; each email attachment must not exceed 10 MB. If multiple files are required, please send them in separate emails.

ADDENDUM TO SOLICITATION PROVISIONS

FAR AND DOSAR PROVISIONS NOT PRESCRIBED IN PART 12

52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. In addition, the full text of a clause may be accessed electronically at Acquisition.gov; this address is subject to change.

THE FOLLOWING FAR PROVISIONS ARE INCORPORATED BY REFERENCE:

Provision	Title	Date
52.204-7	System for Award Management	NOV 2024
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.204-27	Prohibition on a ByteDance Covered Application	JUN 2023
52.209-7	Information Regarding Responsibility Matters	OCT 2018
52.212-1	Instructions to Bidders—Commercial Products and Commercial Services	SEP 2023
52.214-34	Submission of Quotations in the English Language	APR 1991
52.222-56	Certification Regarding Trafficking in Persons Compliance Plan	OCT 2020

THE FOLLOWING DOSAR PROVISION IS PROVIDED IN FULL TEXT:

652.206-70 ADVOCATE FOR COMPETITION / OMBUDSMAN (FEB 2015)

(a) The Department of State's Advocate for Competition is responsible for assisting industry in removing restrictive requirements from Department of State solicitations and removing barriers to full and open competition and use of commercial items. If such a solicitation is considered competitively restrictive or does not appear properly conducive to competition and commercial practices, potential bidders are encouraged first to contact the contracting office for the solicitation. If concerns remain unresolved, contact:

- For solicitations issued by the Office of Acquisition Management (A/GA/AMD) or a Regional Procurement Support Office, the A/GA/AMD Advocate for Competition, at AQMCompetitionAdvocate@state.gov.
- For all others, the Department of State Advocate for Competition at cat@state.gov.

(b) The Department of State's Acquisition Ombudsman has been appointed to hear concerns from potential bidders and contractors during the pre-award and post-award phases of this acquisition. The role of the ombudsman is not to diminish the authority of the contracting officer, the Technical Evaluation Panel or Source Evaluation Board, or the selection official. The purpose of the ombudsman is to facilitate the communication of concerns, issues, disagreements, and recommendations of interested parties to the appropriate Government personnel, and work to resolve them. Interested parties are invited to contact the contracting activity ombudsman. Concerns that cannot be resolved at a contracting activity level may be referred to the Department of State Acquisition Ombudsman at (703) 516-1696 or write to: Department of State, Acquisition Ombudsman, Office of Global Acquisitions (A/GA), Suite 1060, SA-15, Washington, DC 20520.

(End of provision)

SECTION 4 – EVALUATION

The Government intends to establish a single Purchase Order, resulting from this solicitation, to the responsible bidder whose quotation conforms to the solicitation and is determined to be the Lowest Price Technically Acceptable (LPTA), in accordance with simplified acquisition procedures under FAR Part 13.

This selection process will utilize FAR 13 procedures.

EVALUATION METHOD

Award will be made to the responsible bidder whose quotation: (1) conforms to the requirements of the solicitation; (2) meets all minimum technical acceptability requirements on a Pass/Fail basis; and (3) reflects the lowest evaluated price.

The Government will not consider technical superiority above the minimum requirements as a basis for award. Quotations exceeding the stated minimum technical requirements will not receive credit, and the Government will not pay a premium for technical features beyond those specified in this solicitation.

EVALUATION FACTORS

1. Compliance Review (Pass/Fail)

The Government will perform an initial review of quotations received to determine completeness and compliance with Section 1, Performance Work Statement; Section 3, Instructions to Bidders; and all the terms of the solicitation. The Government may reject as unacceptable any quotation that does not conform to the solicitation.

2. Cybersecurity Supply Chain Risk Management (C-SCRM) Go/No-Go

This factor is evaluated on a go/no-go basis. The Government will evaluate whether the submitted C-SCRM Questionnaire and State Department Secure Software Development Attestation Form (if applicable) meet the definition for the “Go” or “No-Go” ratings for this factor. The “Go” and “No-Go” ratings and their definitions are as follows:

Rating	Rating Definition
GO	The quotation meets the criteria in the following paragraph(s). The C-SCRM Questionnaire contains both of the following: (1) C-SCRM Questionnaire instructions are completed; and (2) contains “Yes” answers for all questions in Parts 2 and 3 of the questionnaire; or the vendor has submitted a third-party authorizing official assessment such as ISO 27001, ISO 9000, SOC II, or FedRAMP authorization. For suppliers offering any software, the State Department Secure Software Development Attestation Form (or another federal agency’s equivalent form) is signed and submitted in accordance with the form’s instructions.
NO-GO	The quotation does not meet one (1) or more of the criteria in the “Go” rating above.

A “No-Go” rating will result in the quotation being excluded from further evaluation.

3. Technical Acceptability (Pass/Fail)

Each quotation will be evaluated against the minimum technical acceptability criteria below. To be rated **Technically Acceptable**, the bidder shall demonstrate ALL of the following:

1. The bidder is an Apple Authorized Reseller, or shall source the requested devices exclusively from Apple Authorized Resellers, supported by documentary evidence (e.g., Apple authorization letter or reseller certificate).
2. The bidder confirms its ability to supply new, factory-sealed devices in original Apple manufacturer packaging, of the exact model, storage capacity, and color specified in Section 2 (Schedule of Supplies/Services).
3. The bidder confirms that devices will not be enrolled into any Apple Business Manager (ABM) instance prior to delivery, in accordance with Section 4 of the Statement of Work.
4. The bidder confirms compliance with FAR 52.204-25 (no Huawei, ZTE, Hytera, Hikvision, or Dahua components or services).
5. The bidder commits to a delivery timeframe of no more than fourteen (14) calendar days after receipt of the Purchase Order.
6. The bidder confirms the standard Apple manufacturer warranty (minimum twelve (12) months from date of acceptance) and post-delivery warranty support consistent with Section 7 of the Statement of Work.

A quotation that fails to meet any of the above criteria will be rated Technically Unacceptable and will not be further evaluated for award.

4. Price Evaluation

Total evaluated price will be determined by multiplying the quoted unit prices by the quantities in Section 1, Block 23 (including shipping and handling and applicable VAT) to arrive at a Grand Total. The Government will rank technically acceptable quotations in order of evaluated price, lowest to highest. Award will be made to the lowest-priced bidder whose quotation has been determined Technically Acceptable.

The Government reserves the right to reject quotations that are unreasonably low or unreasonably high in price.

RESPONSIBILITY DETERMINATION

The Government will determine contractor responsibility by analyzing whether the apparent successful bidder complies with the requirements of FAR 9.1, including:

1. Active status in System for Award Management (SAM).
2. Adequate financial resources or the ability to obtain them.
3. Ability to comply with the required delivery schedule, taking into consideration all existing commercial and governmental business commitments.
4. Satisfactory record of integrity and business ethics.
5. Necessary organization, experience, and skills or the ability to obtain them.
6. Necessary equipment and facilities or the ability to obtain them.
7. Be otherwise qualified and eligible to receive an award under applicable laws and regulations.

SECTION 5 - REPRESENTATIONS AND CERTIFICATIONS

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Bidder shall not complete the representation at paragraph (d)(1) of this provision if the Bidder has represented that it “does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument” in paragraph (c)(1) in the provision at 52.204-26 or in paragraph (v)(2)(i) of the provision at 52.212-3. The Bidder shall not complete the representation in paragraph (d)(2) of this provision if the Bidder has represented that it “does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services” in paragraph (c)(2) of the provision at 52.204-26 or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision— “Backhaul,” “covered telecommunications equipment or services,” “critical technology,” “interconnection arrangements,” “reasonable inquiry,” “roaming,” and “substantial or essential component” have the meanings provided in the clause 52.204-25.

(b) Prohibition. Section 889(a)(1)(A) and (B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the procurement of covered telecommunications equipment or services as a substantial or essential component of any system.

(c) Procedures. The Bidder shall review the list of excluded parties in SAM (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(d) Representation.

(1) It ☐ will, ☐ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract, or other contractual instrument resulting from this solicitation.

(2) After conducting a reasonable inquiry, for purposes of this representation, the Bidder represents that— It ☐ does, ☐ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES— REPRESENTATION (OCT 2020)

(a) Definitions. “Covered telecommunications equipment or services” and “reasonable inquiry” have the meaning provided in the clause 52.204-25.

(b) Procedures. The Bidder shall review the list of excluded parties in SAM (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(c) Representations.(1) The Bidder represents that it ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the Bidder represents that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

52.212-3 BIDDER REPRESENTATIONS AND CERTIFICATIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAY 2024)

The Bidder shall complete only paragraph (b) of this provision if the Bidder has completed the annual representations and certifications electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Bidder has not completed the annual representations and certifications electronically, the Bidder shall complete only paragraphs (c) through (v) of this provision.

(b) Annual Representations and Certifications.

(1) Any changes provided by the Bidder in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The bidder has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Bidder verifies by submission of this quotation that the representations and certifications currently posted electronically at FAR 52.212-3, Bidder Representations and Certifications—Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this quotation is submitted and are incorporated in this quotation by reference (see FAR 4.1201), except for paragraphs _____.

[Bidder to identify the applicable paragraphs at (c) through (v) of this provision that the bidder has completed for the purposes of this solicitation only, if any.]

The full text of FAR 52.212-3 is available electronically at Acquisition.gov. Bidders are reminded that paragraphs (c) through (v) include representations concerning, among other things: small business status, previous contracts and compliance, payments to influence Federal transactions, Buy American, trade agreements, certification regarding responsibility matters, child labor certification, place of manufacture, taxpayer identification number, restricted business operations in Sudan, prohibition on contracting with inverted domestic corporations, prohibition on contracting with entities engaging in certain activities or transactions relating to Iran, ownership or control of bidder, and covered telecommunications equipment or services representation.

(End of Provision)

52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS – NOTICE AND REPRESENTATION (JUN 2020)

(a) Definitions. “Foreign person” means any person other than a United States person. “Specified Federal procurement payment” means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. “United States person,” as defined in 26 U.S.C. 7701(a)(30), means a citizen or resident of the United States; a domestic partnership; a domestic corporation; any estate (other than a foreign estate within the meaning of 26 U.S.C. 701(a)(31)); and any

trust if a court within the United States is able to exercise primary supervision over the administration of the trust and one or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Bidder would claim an exemption from the withholding by using the IRS Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Bidder represents that—

(1) It ☐ is ☐ is not a foreign person; and

(2) If the Bidder indicates “is” in paragraph (d)(1) of this provision, then the Bidder represents that—I am claiming on the IRS Form W-14 ☐ a full exemption, or ☐ partial or no exemption from the excise tax.

(e) If the Bidder represents it is a foreign person in paragraph (d)(1) of this provision, then—

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Bidder shall submit with its quotation the IRS Form W-14. If the IRS Form W-14 is not submitted with the quotation, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(End of provision)

652.225-70 ARAB LEAGUE BOYCOTT OF ISRAEL (AUG 1999)

(a) Definitions. As used in this provision: “Foreign person” means any person other than a United States person as defined below. “United States person” means any United States resident or national (other than an individual resident outside the United States and employed by other than a United States person), any domestic concern (including any permanent domestic establishment of any foreign concern), and any foreign subsidiary or affiliate (including any permanent foreign establishment) of any domestic concern which is controlled in fact by such domestic concern, as provided under the Export Administration Act of 1979, as amended.

(b) Certification.

By submitting this quotation, the bidder certifies that it is not:

- Taking or knowingly agreeing to take any action, with respect to the boycott of Israel by Arab League countries, which Section 8(a) of the Export Administration Act of 1979, as amended (50 U.S.C. 2407(a)), prohibits a United States person from taking; or
- Discriminating in the award of subcontracts on the basis of religion.

(End of provision)

THE FOLLOWING FAR PROVISION IS INCORPORATED BY REFERENCE:

Provision	Title	Date
52.225-25	Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran—Representation and Certifications	JUN 2020

BIDDER ACKNOWLEDGMENT

By signing this solicitation at Block 30a of the SF-1449, the bidder acknowledges that the representations and certifications made in this Section 5 are complete and accurate as of the date of the quotation. Bidders who have completed and are relying on annual representations and certifications in SAM need only complete paragraph (b) of FAR 52.212-3 as indicated above.

[END OF SOLICITATION]